[Last checked: 15 May 2026.*]

*The last time this Act was reviewed for updates.

IMMIGRATION ACT 13 OF 2002

[Updated to 14 May 2026.**]

**Date of last changes incorporated into this Act.

English text signed by the President

Assented to 30 May 2002

Published: G. 23478 of 31 May 2002

Commencement: **12 March 2003;**

ss 7, 52: **20 February 2003;**

s 4: **26 February 2003;**

s 37: To be proclaimed

ProcR 13, G. 24951 of 20 February 2003

Amended

Prevention and Combating of Corrupt Activities Act 12 of 2004 (G. 26311 of 28 April 2004, with effect from 27 April 2004),

Immigration Amendment Act 19 of 2004 (G. 26901 of 18 October 2004, with effect from 1 July 2005 [ProcR 30, G. 27725 of 27 June 2005]),

Criminal Law (Sexual Offences and Related Matters) Amendment Act 32 of 2007 (G. 30599 of 14 December 2007, with effect from 16 December 2007),

Immigration Amendment Act 3 of 2007 (G. 30095 of 18 July 2007, with effect from 26 May 2014 [ProcR 32, G. 37679 of 22 May 2014]),

Immigration Amendment Act 13 of 2011 (G. 34561 of 26 August 2011, with effect from 26 May 2014 [ProcR 33, G. 37679 of 22 May 2014]),

Prevention and Combating of Trafficking in Persons Act 7 of 2013 (G. 36715 of 29 July 2013, with effect from 9 August 2015 unless otherwise indicated [ProcR 32, G. 39078 of 7 August 2015]).

Uncommenced Amendment

Immigration Amendment Act 8 of 2016 (G. 40302 of 27 September 2016), with effect from date to be proclaimed,

Immigration Amendment Act 11 of 2025, with effect from date to be proclaimed.

Uncommenced amendment

General substitution:

- "Court'", wherever it occurs, with ''court'.

  [General substitution by s 2 of Act 13 of 2002 with effect from date to be proclaimed.]

General substitution: By s 26 of 13 of 2011:

"26. Substitution of words

The principal Act is hereby amended—

(a) by the substitution for the word "permit" or "permits", wherever it occurs in the Act, of the word "visa" or "visas", as the case may be, except in cases where—

(i) reference is made to a permanent residence permit; and

(ii) there is an amendment effected by any of the sections of this Act, excluding this section;

(b) by the substitution for the words "temporary residence permit" or "temporary residence permits", wherever they occur in the Act, of the word "visa" or "visas", as the case may be;

(c) by the substitution for the word "condition" or "conditions", wherever it occurs in the Act, of the words "terms and conditions", except in cases where the phrase '"terms and conditions" or "terms or conditions"' are used; and

(d) by the substitution for the words "21 years", wherever they occur in the Act, of the words "18 years"."

ACT

To provide for the regulation of admission of persons to, their residence in, and their departure from the Republic; and for matters connected therewith.

PREAMBLE

[Preamble substituted by s 1 of Act 19 of 2004.]

In providing for the regulation of admission of foreigners to, their residence in, and their departure from the Republic and for matters connected therewith, the Immigration Act aims at setting in place a new system of immigration control which ensures that—

(a) visas and permanent residence permits are issued as expeditiously as possible and on the basis of simplified procedures and objective, predictable and reasonable requirements and criteria, and without consuming excessive administrative capacity;

[Preamble (a) substituted by s 1 of Act 13 of 2011.]

(b) security considerations are fully satisfied and the State retains control over the immigration of foreigners to the Republic;

(c) interdepartmental coordination and public consultations enrich the management of immigration;

[Preamble (c) substituted by s 1 of Act 13 of 2011.]

(d) economic growth is promoted through the employment of needed foreign labour, foreign investment is facilitated, the entry of exceptionally skilled or qualified people is enabled, skilled human resources are increased, academic exchanges within the Southern African Development Community is facilitated and tourism is promoted;

(e) the role of the Republic in the continent and the region is recognised;

(f) the entry and departure of all persons at ports of entry are efficiently facilitated, administered and managed;

(g) immigration laws are efficiently and effectively enforced, deploying to this end significant administrative capacity of the Department of Home Affairs, thereby reducing the pull factors of illegal immigration;

(h) the South African economy may have access at all times to the full measure of needed contributions by foreigners;

(i) the contribution of foreigners in the South African labour market does not adversely impact on existing labour standards and the rights and expectations of South African workers;

(j) a policy connection is maintained between foreigners working in South Africa and the training of our citizens;

(k) push factors of illegal immigration may be addressed in cooperation with other Departments and the foreign states concerned;

(l) immigration control is performed within the highest applicable standards of human rights protection;

(m) xenophobia is prevented and countered;

(n) a human rights based culture of enforcement is promoted;

(o) the international obligations of the Republic are complied with; and

(p) civil society is educated on the rights of foreigners and refugees.

BE IT ENACTED by the Parliament of the Republic of South Africa, as follows:—

ARRANGEMENT OF SECTIONS

1. Definitions

OBJECTIVES AND STRUCTURES OF IMMIGRATION CONTROL

2. …
3. Delegation of powers
4. Immigration Advisory Board
5. Functions of Board
6. ...
7. Regulations
8. Review and appeal procedures

ADMISSION AND DEPARTURE

9. Admission and departure

9A. Place of entry or exit

TEMPORARY RESIDENCE

10. Visas to temporarily sojourn in Republic
10A. Port of entry visa
10B. Transit visas
11. Visitor's visa
12. ...
13. Study visa
14. Treaty visa
15. Business visa
16. Crew visa
17. Medical treatment visa
18. Relative's visa
19. Work visas
20. Retired person visa
21. Corporate visa
22. Exchange visa
23. Asylum transit visa
24. ...

PERMANENT RESIDENCE

25. Permanent residence
26. Direct residence
27. Residence on other grounds
28. Withdrawal of permanent residence permit

EXCLUSIONS AND EXEMPTIONS

29. Prohibited persons
30. Undesirable persons
31. Exemptions

ENFORCEMENT AND MONITORING

32. Illegal foreigners
33. Inspectorate
34. Deportation and detention of illegal foreigners

35. Duties with regard to conveyances
36. ...

IMMIGRATION COURTS

37. ...

DUTIES AND OBLIGATIONS

38. Employment
39. Learning institutions
40. Keeping of registers of lodgers by certain persons
41. Identification
42. Aiding and abetting illegal foreigners
43. Obligation of foreigners
44. Organs of state
45. Other institutions

MISCELLANEOUS

46. ...
47. ...
48. Foreigners erroneously allowed to enter Republic

OFFENCES

49. Offences
50. Administrative offences

TRANSITIONAL PROVISIONS

51. Transitional definitions
52. Functions of Department and Board
53. Existing visas
54. Repeal of laws
55. Short title and commencement

Schedule 1

Schedule 2

Schedule 3

1. Definitions and interpretation

(1) In this Act, unless the context otherwise indicates—

"admission" means entering the Republic at a port of entry in terms of section 9;

"advance passenger processing" means the pre-clearance of persons, in the prescribed manner, prior to boarding conveyances by means of a boarding advice issued to owners or persons in charge of conveyances;

["advance passenger processing" inserted by s 2(a) of Act 13 of 2011.]

"affiliate" means an associate member of a company or organisation;

["affiliate" inserted by s 1(a) of Act 3 of 2007.]

"Board" means the Immigration Advisory Board established by section 4;

"border" means the national borders of the Republic;

"branch" means a branch as contemplated in section 21A of the Companies Act, 1973 (Act 61 of 1973);

["branch" inserted by s 1(b) of Act 3 of 2007.]

"citizen" has the meaning assigned thereto in the South African Citizenship Act, 1995 (Act 88 of 1995);

"conveyance" means any ship, boat, aircraft or vehicle, or any other means of transport;

"corporate applicant" means a juristic person established under the laws of the Republic which applies for a corporate visa referred to in section 21;

["corporate applicant" substituted by s 2(b) of Act 13 of 2011.]

"court" means a magistrate's court;

"customary union" …

["customary union" repealed by s 2(c) of Act 13 of 2011.]

"Department" means the Department of Home Affairs;

"depart or departure" means exiting the Republic from a port of entry to another country in compliance with this Act;

["depart or departure" substituted by s 1(c) of Act 3 of 2007.]

"deport or deportation" means the action or procedure aimed at causing an illegal foreigner to leave the Republic in terms of this Act;

"Director-General" means the Director-General of the Department;

"employer" includes a person contractually bound by the applicable employment contract as an employer or, in the case of a juristic person, its chief executive officer or the person to whom such officer has delegated the final responsibility in respect of personnel matters;

"foreign country" means a country other than the Republic;

"foreign state" means the juristic entity governing a foreign country;

"foreigner" means an individual who is not a citizen;

"illegal foreigner" means a foreigner who is in the Republic in contravention of this Act;

"immediate family" means persons within the second step of kinship, where marriage or a spousal relationship is counted as one of such steps, but any common antecedent is not so counted;

"immigration officer" means an officer appointed by the Director-General to perform the functions of either the permitting office, port of entry or inspectorate as contemplated in this Act;

["immigration officer" substituted by s 2(d) of Act 13 of 2011.]

"marriage" means—

(a) a marriage concluded in terms of—

(i) the Marriage Act, 1961 (Act 25 of 1961); or

(ii) the Recognition of Customary Marriages Act, 1998 (Act 120 of 1998);

(b) a civil union concluded in terms of the Civil Union Act, 2006 (Act 17 of 2006); or

(c) a marriage concluded in terms of the laws of a foreign country;

["marriage" substituted by s 2(e) of Act 13 of 2011.]

"Minister" means the Minister of Home Affairs;

"organ of state" means an organ of state as defined in section 239 of the Constitution;

"owner" means the owner of record and includes the charterer of a conveyance and any agent within the Republic of the owner or the charterer;

"passenger name record" means the record of the data of a person as contemplated in section 35(3)(a) created by the owner or person in charge of a conveyance or his or her authorised agents for each journey booked by or on behalf of any person;

["passenger name record" inserted by s 2(f) of Act 13 of 2011.]

"passport" means any passport or travel document containing the prescribed information and characteristics issued—

(a) under the South African Passports and Travel Documents Act, 1994 (Act 4 of 1994);

(b) on behalf of a foreign state recognised by the Government of the Republic to a person who is not a South African citizen;

(c) on behalf of any international organisation as prescribed, including regional or sub-regional organisations, to a person who is not a South African citizen; or

any other document approved by the Minister and issued under special circumstances to a person who cannot obtain a document contemplated in paragraphs (a) to (c);

["passport" substituted by s 2(g) of Act 13 of 2011.]

"permanent residence permit" means a permit contemplated in section 25, 26 or 27;

"port of entry" means a place designated as such by the Minister in terms of section 9A;

["port of entry" substituted by s 2(h) of Act 13 of 2011.]

"**port of entry visa**" means the authority to travel from a port of entry of another country to any port of entry of the Republic for the purposes of admission into the Republic, as contemplated in section 10A;

["port of entry visa" inserted by s 2(i) of Act 13 of 2011.]

"premises" means any building, structure or tent, together with the land on which it is situated and the adjoining land used in connection with it, and includes any land without any building, structure or tent and any conveyance;

"prescribed" means prescribed by regulation;

"prohibited person" means any person contemplated in section 29;

"Republic" …

["Republic" repealed by s 2(j) of Act 13 of 2011.]

"spouse" means a person who is a party to—

(a) a marriage as defined in this Act; or

["spouse" para (a) substituted by s 2(k) of Act 13 of 2011.]

(b) a permanent homosexual or heterosexual relationship as prescribed;

"status" means the status of the person as determined by the relevant visa or permanent residence permit granted to a person in terms of this Act;

["status" substituted by s 2(l) of Act 13 of 2011.]

"subsidiary" means a subsidiary as defined in section 1(1) of the Companies Act, 1973 (Act 61 of 1973);

["subsidiary" inserted by s 1(d) of Act 3 of 2007.]

"temporary residence permit" …

["temporary residence permit" repealed by s 2(m) of Act 13 of 2011.]

"this Act" means this Act, including its schedules, and includes the regulations made pursuant thereto;

"transit visa" means a transit visa contemplated in section 10B;

"undesirable person" means a person contemplated in section 30;

"visa" means the authority to temporarily sojourn in the Republic for purposes of—

(a) transit through the Republic as contemplated in section 10B;

(b) a visit as contemplated in section 11;

(c) study as contemplated in section 13;

(d) conducting activities in the Republic in terms of an international agreement to which the Republic is a party as contemplated in section 14;

(e) establishing or investing in a business as contemplated in section 15;

(f) working as a crew member of a conveyance in the Republic as contemplated in section 16;

(g) obtaining medical treatment as contemplated in section 17;

(h) staying with a relative as contemplated in section 18;

(i) working as contemplated in section 19 or 21;

(j) retirement as contemplated in section 20;

(k) an exchange programme as contemplated in section 22; or

(l) applying for asylum as contemplated in section 23,

whichever is applicable in the circumstances;

["visa" substituted by s 2(n) of Act 13 of 2011.]